

SOFTWARE DEVELOPMENT AND DELIVERY AGREEMENT

For Mobile Application Development and App Store Deployment

This Software Development and Delivery Agreement (the **Agreement**) is entered into as of 01/04/26 (the **Effective Date**), by and between:

Corinne Kelley (Client)

Address: 1172 Garraty Rd.

Email: csk097020@gmail.com

and

Patrick Schooler (Developer)

Address: 24803 White Crk, San Antonio, TX 78255

Email: patrickschooler@hotmail.com

Client and Developer are each referred to individually as a **Party** and collectively as the **Parties**.

RECITALS

WHEREAS, Client desires to engage Developer to develop, test, and deploy a mobile application (the **Application**) to the Apple App Store and Google Play Store; and

WHEREAS, Developer has the necessary skills, expertise, and resources to develop and deliver the Application in accordance with the specifications set forth herein; and

WHEREAS, the Parties desire to enter into a time and materials engagement under which Developer will provide software development services at an hourly rate, with the understanding that project requirements may evolve as development progresses;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. SCOPE OF WORK

1.1 Time and Materials Engagement. This is a time and materials engagement. Developer agrees to provide software development services to create a mobile application (the **Application**) for deployment on both the Apple iOS platform and the Android platform. The initial scope, specifications, and requirements are set forth in **Appendix A** attached hereto and incorporated herein by reference.

1.2 Evolving Requirements. The Parties acknowledge that software development is an iterative process and that requirements may evolve as the project progresses. Client may request modifications, enhancements, or changes to the scope of work at any time. All such changes shall be billed on a time and materials basis at the hourly rate specified in Section 5. Developer shall provide reasonable estimates for requested changes upon Client's request.

2. DELIVERABLES

Developer shall provide the following deliverables as detailed in Appendix A:

1. Fully functional mobile application for iOS platform compatible with the current and previous major version of iOS
2. Fully functional mobile application for Android platform compatible with the current and previous major version of Android
3. Source code for both iOS and Android versions, properly commented and documented
4. User documentation and technical documentation
5. Successful submission and deployment of the Application to both the Apple App Store and Google Play Store
6. All assets, graphics, and resources used in the Application
7. Build and deployment instructions

3. SOURCE CODE ACCESS

3.1 GitHub Repository. Developer shall maintain the Application source code in a GitHub repository and provide Client with read access to the repository throughout the development process. This provides Client with real-time visibility into development progress and code changes.

3.2 Repository Access. Client shall have continuous access to view the repository, commit history, and all code changes. Developer shall commit code changes regularly with clear, descriptive commit messages.

3.3 Code Ownership. Notwithstanding Client's access to the repository during development, ownership of the code shall transfer to Client in accordance with Section 6 (Intellectual Property Rights) upon full payment of all fees due under this Agreement.

3.4 Repository access post contract conclusion. The developer will ensure that the client has access to the GitHub repository for no less than 90 days past the conclusion of the contract or longer as agreed to by the parties.

4. DEVELOPMENT TIMELINE

The development timeline shall be as follows:

- a) **Project Start Date:** ___TBD_____
- b) **Alpha Version Delivery:** ___TBD_____
- c) **Beta Version Delivery:** ___TBD_____
- d) **Final Version Delivery:** ___TBD_____
- e) **App Store Submission:** ___TBD_____

Any changes to the timeline must be agreed upon in writing by both Parties. Either Party may request modifications to the development priorities or timeline. Developer shall provide Client with estimates of time and cost impacts for any requested changes to scope or priorities.

5. COMPENSATION AND PAYMENT TERMS

5.1 Hourly Rate. Client agrees to pay Developer at the rate of Forty Dollars (\$40.00) per hour for all work performed under this Agreement.

5.2 Initial Budget Cap. The initial budget cap for this project is Three Thousand Dollars (\$3,000.00). Developer shall notify Client when total billable hours reach \$2,500.00 (approximately 62.5 hours). Upon reaching the \$3,000.00 cap, the Parties shall meet to review project progress and determine whether to: (a) continue development under a modified budget, (b) proceed with the project on a continued hourly basis, or (c) conclude the engagement.

5.3 Invoicing Schedule. Developer shall submit invoices to Client approximately every two (2) weeks detailing the hours worked, tasks completed, and total amount due for the invoicing period. Each invoice shall include a summary breakdown of time spent on specific tasks.

5.4 Payment Terms. Client shall pay each invoice within fifteen (15) days of invoice date. Late payments shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is less.

5.5 Time Tracking. Developer shall maintain accurate records of all time spent on the project and make such records available to Client upon request. Time shall be billed in quarter-hour (0.25 hour) increments.

6. INTELLECTUAL PROPERTY RIGHTS

6.1 Application-Specific Code. Upon full payment of all fees due under this Agreement, Client shall own all rights, title, and interest in and to the application-specific code, designs, user interfaces, business logic, and other materials created specifically for Client's Application (**Application-Specific Materials**). Developer hereby assigns to Client all such rights in the Application-Specific Materials.

6.2 General-Purpose Components. Developer retains all rights, title, and interest in and to any general-purpose code, utilities, libraries, tools, algorithms, or other reusable components created during the development of the Application that are not specific to Client's business (**General-Purpose Components**). General-Purpose Components include, but are not limited to, image manipulation routines, data processing utilities, authentication frameworks, and other code that could be reused in other projects. Developer grants to Client a perpetual, irrevocable, worldwide, royalty-free, non-exclusive license to use, modify, distribute, and incorporate the General-Purpose Components for any purpose whatsoever, including but not limited to use in the Application, derivative works, other projects, or commercial products.

6.3 Classification. Developer shall clearly identify and document which components are Application-Specific Materials and which are General-Purpose Components. Code base will be commented throughout to delineate this difference. In cases of ambiguity, the Parties shall negotiate in good faith to determine the appropriate classification. As a general principle, if a component implements Client's unique business requirements or processes, it shall be deemed Application-Specific; if a component provides general functionality that could be used across multiple applications, it shall be deemed General-Purpose.

6.4 Third-Party Components. Developer represents that any third-party components, libraries, or frameworks incorporated into the Application are properly licensed and do not infringe upon any third-party intellectual property rights. Developer shall provide Client with a list of all such third-party components and their respective licenses.

6.5 Pre-existing Materials. Developer retains ownership of any materials, code, or intellectual property developed by Developer prior to this Agreement. To the extent

any such pre-existing materials are incorporated into the Application, Developer grants Client a perpetual, irrevocable, worldwide, royalty-free, non-exclusive license to use, modify, distribute, and incorporate such materials for any purpose whatsoever.

7. TESTING AND ACCEPTANCE

7.1 Testing Period. Client shall have seven (7) business days from receipt of each deliverable to test and evaluate the deliverable (the **Testing Period**).

7.2 Acceptance or Rejection. If the deliverable conforms to the specifications set forth in Appendix A, Client shall accept the deliverable in writing. If the deliverable does not conform to the specifications, Client shall provide Developer with a written list of deficiencies within the Testing Period.

7.3 Corrections. Developer shall correct any deficiencies identified by Client within a reasonable time and resubmit the deliverable for acceptance. This process shall repeat until the deliverable is accepted by Client.

7.4 Deemed Acceptance. If Client fails to accept or reject a deliverable within the Testing Period, the deliverable shall be deemed accepted.

8. APP STORE DEPLOYMENT

8.1 Developer Responsibilities. Developer shall:

- f) Prepare the Application for submission to both the Apple App Store and Google Play Store in accordance with their respective guidelines and requirements
- g) Create all necessary app store assets, including icons, screenshots, and promotional materials as specified in Appendix A
- h) Submit the Application to both app stores using Client's developer accounts
- i) Address any issues or feedback from the app store review teams
- j) Obtain final approval and deployment of the Application on both platforms

8.2 Client Responsibilities. Client shall:

- k) Provide Developer with access to Client's Apple Developer Account and Google Play Console account
- l) Provide all necessary information for app store listings, including privacy policy, terms of service, and contact information
- m) Pay any applicable app store fees, including Apple Developer Program and Google Play Console registration fees

8.3 Rejection by App Stores. If either app store rejects the Application due to failure to comply with their guidelines, Developer shall make the necessary modifications at no additional cost to Client, provided such modifications are consistent with the original specifications in Appendix A. If modifications are required due to changes in Client requirements or app store policies implemented after the Effective Date, the Parties shall negotiate in good faith regarding any additional fees.

9. WARRANTIES

9.1 Developer Warranties. Developer warrants that:

- n) The Application will be developed in a professional and workmanlike manner in accordance with industry standards
- o) The Application will conform to the specifications set forth in Appendix A
- p) The Application will be free from material defects in workmanship
- q) Developer has the right to enter into this Agreement and to grant the rights granted herein
- r) The Application will not infringe upon any third-party intellectual property rights

9.2 Warranty Period. Developer warrants that the Application will perform substantially in accordance with Appendix A for a period of ninety (90) days following deployment to the app stores (the **Warranty Period**).

9.3 Warranty Remedy. If Client notifies Developer of any defect or nonconformity during the Warranty Period, Developer shall, at its sole expense, correct such defect or nonconformity within a reasonable time. This remedy is Client's sole and exclusive remedy for breach of the warranties in this Section.

10. LIMITATION OF LIABILITY

10.1 Limitation. EXCEPT FOR BREACHES OF SECTION 6 (INTELLECTUAL PROPERTY RIGHTS) AND SECTION 12 (CONFIDENTIALITY), IN NO EVENT SHALL EITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT EXCEED THE TOTAL AMOUNT PAID OR PAYABLE BY CLIENT TO DEVELOPER UNDER THIS AGREEMENT.

10.2 Exclusion of Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF DATA, OR LOSS OF BUSINESS OPPORTUNITY, ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

11. SCOPE CHANGES AND ADDITIONAL WORK

Given the time and materials nature of this Agreement, Client may request changes to the scope of work, specifications set forth in Appendix A, or add new features at any time. Developer shall provide Client with a written estimate of the additional time required for requested changes. All additional work beyond the scope defined in Appendix A shall be billed at the hourly rate specified in Section 5, subject to the budget cap provisions. Client's authorization to proceed with scope changes may be provided verbally or in writing, but Developer shall document all such authorizations in the bi-weekly invoices.

12. CONFIDENTIALITY

12.1 Definition. Each Party may have access to confidential information of the other Party, including but not limited to technical data, trade secrets, business information, and other proprietary information (**Confidential Information**).

12.2 Obligations. Each Party agrees to maintain the confidentiality of the other Party's Confidential Information and not to disclose such information to any third party without prior written consent. Each Party shall use the other Party's

Confidential Information only for purposes of performing its obligations under this Agreement.

12.3 Exceptions. The obligations in this Section shall not apply to information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully known to the receiving Party prior to disclosure; (c) is rightfully received from a third party without breach of any confidentiality obligation; or (d) is independently developed by the receiving Party without use of the Confidential Information.

13. INDEPENDENT CONTRACTOR

Developer is an independent contractor and not an employee, partner, or joint venturer of Client. Developer shall be solely responsible for all taxes, withholdings, and other statutory obligations related to Developer's compensation under this Agreement.

14. TERMINATION

14.1 Termination for Cause. Either Party may terminate this Agreement upon thirty (30) days written notice to the other Party if the other Party materially breaches this Agreement and fails to cure such breach within such thirty (30) day period.

14.2 Termination for Convenience. Client may terminate this Agreement for convenience upon fifteen (15) days written notice to Developer. In such event, Client shall pay Developer for all hours completed at the point of termination date, plus any expenses incurred.

14.3 Effect of Termination. Upon termination, Developer shall immediately cease all work and deliver to Client all completed work, work in progress, and any Client materials or property in Developer's possession.

14.4 Survival. The following provisions shall survive termination of this Agreement: Sections 6 (Intellectual Property Rights), 10 (Limitation of Liability), 12 (Confidentiality), and 16 (General Provisions).

15. DISPUTE RESOLUTION

15.1 Negotiation. The Parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement through negotiation between senior executives of each Party.

15.2 Governing Law and Venue. This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to conflicts of law principles. Any legal action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the state or federal courts located in Bexar County, Texas, and each Party hereby consents to the jurisdiction of such courts.

16. GENERAL PROVISIONS

16.1 Entire Agreement. This Agreement, including Appendix A, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, proposals, or representations, written or oral, concerning its subject matter.

16.2 Amendments. This Agreement may be amended only by a written document signed by both Parties.

16.3 Assignment. Neither Party may assign this Agreement without the prior written consent of the other Party, except that Client may assign this Agreement in connection with a merger, acquisition, or sale of substantially all of its assets.

16.4 Notices. All notices required or permitted under this Agreement shall be in writing and shall be delivered by email to the addresses set forth above or to such other addresses as either Party may designate in writing.

16.5 Severability. If any provision of this Agreement is held to be invalid or unenforceable, such provision shall be struck and the remaining provisions shall be enforced to the fullest extent permitted by law.

16.6 Waiver. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving Party. No waiver shall constitute a continuing waiver or a waiver of any other provision.

16.7 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed original signatures for all purposes.

16.8 Force Majeure. Neither Party shall be liable for any failure or delay in performance due to causes beyond its reasonable control, including but not limited to acts of God, war, terrorism, labor disputes, or governmental actions.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

CLIENT:



Corinne Kelley (Jan 4, 2026 18:07:56 CST)

Corinne Kelley

Date: 01/04/2026

DEVELOPER:



Patrick Schooler (Jan 4, 2026 18:54:41 CST)

Patrick Schooler

Date: 1/4/2026

APPENDIX A

DELIVERABLES AND SPECIFICATIONS

1. APPLICATION DESCRIPTION

Application Name: Momentary Mementos

Platforms: Native mobile applications for iOS (iPhone/iPad) and Android smartphones and tablets

Development Approach: Single codebase using C# and .NET MAUI targeting both iOS and Android platforms

Purpose: A video diary application that allows users to capture, organize, and view 10-second video clips of their daily life moments.

2. MINIMUM VIABLE PRODUCT FEATURES

2.1 User Account Management

- Create account with email and password
- Log in and log out
- Reset forgotten password

2.2 Video Capture

- Record 10-second video clips using phone camera
- Switch between front and rear cameras
- Preview video before saving

2.3 Video Organization

- Tag videos with emotions (Happy, Sad, Grateful, Excited, etc.)
- Tag videos with categories (Family, Friends, Travel, Work, etc.)
- Mark videos as favorites

2.4 Video Playback and Browsing

- View all saved videos in a list
- Filter videos by tags or favorites
- Play videos in full screen
- Delete videos

2.5 Cloud Storage

- Automatic upload of videos to cloud storage
- Access videos from any device after logging in

2.6 Subscription and Payment

- Free tier with limited storage (e.g., 50 videos)
- Paid subscription plans (monthly or annual) with unlimited storage
- In-app purchase process for upgrading to paid plans
- Configurable pricing rules that Client can adjust without app updates
- Display subscription status and renewal information

2.7 Basic Statistics

- Display total number of saved videos
- Show storage space used

3. PLATFORM REQUIREMENTS

iOS: Compatible with iPhone and iPad running iOS 14 or later

Android: Compatible with Android smartphones and tablets running Android 8.0 or later

4. SUBSCRIPTION AND PRICING SYSTEM

4.1 User Tiers

- Free tier with storage limit (number of videos)
- Premium tier with unlimited video storage

4.2 Payment Processing

- Integration with Apple App Store for iOS subscriptions
- Integration with Google Play Billing for Android subscriptions
- Support for monthly and annual subscription options

4.3 Admin Configuration

Client will have access to an admin interface where the following can be configured without requiring app updates:

- Free tier storage limit (e.g., 50, 100, or 200 videos)
- Monthly subscription price
- Annual subscription price
- Enable or disable specific subscription tiers

Note: Actual payment collection and processing fees are handled by Apple and Google. Apple charges 30% commission for the first year and 15% after one year of subscription. Google charges 30% commission for the first 12 months and 15% thereafter. These fees are deducted before funds are transferred to Client.

5. USER INTERFACE

The application will have a clean, intuitive mobile interface optimized for smartphone screens. Navigation will be simple with clearly labeled buttons and sections. The design will follow standard mobile app conventions familiar to users of both iOS and Android platforms.

6. APP STORE DEPLOYMENT

6.1 Apple App Store

- App icons in required sizes
- Screenshots for iPhone and iPad
- App description and keywords
- Privacy policy
- Submit app and obtain approval

6.2 Google Play Store

- App icons and graphics

- Screenshots for phones and tablets
- App description
- Privacy policy
- Submit app and obtain approval

7. DELIVERABLES

Developer will deliver the following upon project completion:

8. Functional mobile application for iOS
9. Functional mobile application for Android
10. Source code with documentation
11. Apps successfully published to Apple App Store and Google Play Store
12. Admin interface for configuring subscription pricing and limits
13. User guide explaining how to use the app
14. Admin documentation for managing backend services

8. ACCEPTANCE CRITERIA

The application is considered complete and acceptable when:

15. Users can create accounts and log in
16. Users can record 10-second videos using their phone camera
17. Users can tag videos with emotions and categories
18. Users can view, filter, and play their saved videos
19. Videos are automatically saved to cloud storage
20. Users can subscribe to paid plans and payment processing works correctly
21. Client can configure pricing and storage limits through admin interface
22. The app works properly on both iOS and Android devices
23. The app is published and available on both app stores
24. The app is free of critical bugs that prevent normal use

9. FUTURE ENHANCEMENTS (NOT INCLUDED IN MVP)

The following features may be added in future versions if Client desires:

- Video trimming tools
- Advanced search and filtering
- Share videos with friends
- Create video compilations
- Advanced statistics and insights
- Custom tag creation

Note: Any features from this list that Client requests during development will be billed at the hourly rate specified in the main Agreement.

ACKNOWLEDGED AND AGREED:

CLIENT:



Corinne Kelley (Jan 4, 2026 18:07:56 CST)

Corinne Kelley

Date: 01/04/2026

DEVELOPER:



Patrick Schooler (Jan 4, 2026 18:54:41 CST)

Patrick Schooler

Date: 1/4/2026

MM_Dev_Contract_2026_1

Final Audit Report

2026-01-05

Created:	2026-01-02
By:	Patrick Schooler (patrickschooler@hotmail.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAKxUmlqt1b9bHCwcm21mpvpLe4PrL_in

"MM_Dev_Contract_2026_1" History

-  Document created by Patrick Schooler (patrickschooler@hotmail.com)
2026-01-02 - 1:50:13 PM GMT
-  Document emailed to csk097020@gmail.com for signature
2026-01-02 - 1:54:08 PM GMT
-  Email viewed by csk097020@gmail.com
2026-01-04 - 11:43:22 PM GMT
-  Signer csk097020@gmail.com entered name at signing as Corinne Kelley
2026-01-05 - 0:07:54 AM GMT
-  Document e-signed by Corinne Kelley (csk097020@gmail.com)
Signature Date: 2026-01-05 - 0:07:56 AM GMT - Time Source: server
-  Document emailed to Patrick Schooler (patrickschooler@hotmail.com) for signature
2026-01-05 - 0:07:57 AM GMT
-  Email viewed by Patrick Schooler (patrickschooler@hotmail.com)
2026-01-05 - 0:53:29 AM GMT
-  Document e-signed by Patrick Schooler (patrickschooler@hotmail.com)
Signature Date: 2026-01-05 - 0:54:41 AM GMT - Time Source: server
-  Agreement completed.
2026-01-05 - 0:54:41 AM GMT

